

**STATE OF VERMONT
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In re: Stephanie Keep
Roster Reg. No. 097-1371

}
}
}

Docket No. 2012-25

**Decision on
UNPROFESSIONAL CONDUCT CHARGE**

Board Members Participating:

Marjorie Trombly, LCMHC, Vice-Chair
Tammy Austin, LMFT
Wendy Magee, Public Member
Jennifer Trombly Young, Rostered Psychotherapist

Appearances:

for Petitioner, State of Vermont: Edward G. Adrian
for Respondent: William Kraham

Board Counsel for the Review of the Proposal for Decision: Larry S. Novins

**Findings of Fact, Conclusions of Law,
and Order**

Background

Ms. Keep was registered on the roster of nonlicensed and noncertified psychotherapists before becoming licensed as a clinical social worker. Ms. Keep was charged with unprofessional conduct for engaging in a sexual relationship with a client in violation of the statutes governing both professions. Rather than have two separate hearings, her case was heard by Administrative Law Officer Michael Lipson. He is authorized by law to render a decision regarding Ms. Keep's social worker license. For administrative efficiency and by consent of the parties and appointment of this Board, he was authorized to conduct a hearing on the social worker charges and pursuant 3 V.S.A. § 811 to render a proposal for decision for this Board's review.

The hearing was held on October 26, 2012. OPR prosecuting attorney Edward G. Adrian presented the case against Ms. Keep. She was represented by William Kraham. After the hearing each side filed proposed Findings of Fact, Conclusions of Law, and Order in the social worker case.

On November 30 Mr. Lipson issued a decision. It was docketed on December 10, 2012. The decision was to serve also as the "proposal for decision" for this Board. We note that Ms. Keep's registration on the roster expired on November 30, 2012. Because Ms. Keep's alleged unprofessional conduct occurred while she was still on the roster, we retain jurisdiction over her.

3 V.S.A. 814(d).

After the proposal for decision was issued, the parties were given the opportunity to file exceptions to the proposal, which they did. They did not request oral argument.

Findings of Fact

We have reviewed Mr. Lipson's Proposal for Decision (attached) and the submissions of the parties. We adopt Mr. Lipson's Findings of Fact.

Conclusions of Law

Mr. Lipson concluded that Ms. Keep violated the following statutes:

26 V.S.A. § 4093(a)(5), (engaging in any sexual relationship with a client with whom the psychotherapist has had a professional relationship within the previous two years.);

26 V.S.A. § 4093(a)(7), (entering into an additional relationship with a client that might impair the psychotherapist's objectivity or otherwise interfere with his or her professional obligations.);

3 V.S.A. § 129a(a)(15), (failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.);

3 V.S.A. § 129a(b)(2), (failure to conform to the essential standards of acceptable and prevailing practice.).

We adopt Mr. Lipson's Conclusions of Law.

Discussion

We concur with Mr. Lipson's analysis and sanction.

Order

We adopt Mr. Lipson's sanctions with the suspension effective retroactively from the entry date of Mr. Lipson's proposal for decision, December 10, 2012.

APPEAL RIGHTS

This is a final administrative determination by the Vermont Board of Allied Mental Health Practitioners.

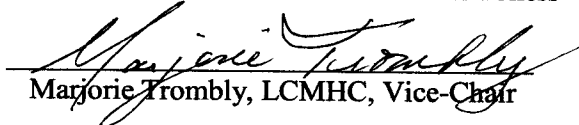
A party aggrieved by a final decision of a board may appeal this decision by filing a

written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, National Life Bldg., North, FL2, Montpelier, VT 05620-3402 within 30 days of the entry of this order.

If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a. To request a stay of the Board's decision, please refer to the attached stay instructions.

Vermont Board of Allied Mental Health Practitioners

By:


Marjorie Trombly, LCMHC, Vice-Chair

Dated February 4, 2013

OFFICE OF PROFESSIONAL REGULATION

DATE OF ENTRY: 2/5/13

**STATE OF VERMONT
SECRETARY OF STATE, OFFICE OF PROFESSIONAL REGULATION**

**(1) CLINICAL SOCIAL WORKERS
(2) BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In re: Stephanie A. Keep	)	Docket No. 2011-486
License No. 089.0074185	)	
	)	
In re Stephanie A. Keep	)	
License No. 097.001371	)	Docket No. 2012-25

**FINDINGS OF FACT, CONCLUSIONS OF LAW, AND ORDER;
PROPOSAL FOR DECISION**

INTRODUCTION. This is a case involving troubling behavior by an individual entitled under the authority of our State's laws to provide mental health care to clients. Two dockets are involved and present virtually identical charges and issues; they were consolidated for the purposes of hearing the evidence. To facilitate matters, the Board of Allied Mental Health Practitioners ["Board"], which oversees the Respondent's ["Ms. Keep"] registration as a non-licensed, non-certified psychotherapist, appointed me as Hearing Officer in its docket. I was appointed as well by the Office of Professional Regulation as the Administrative Law Officer to consider the charges as they pertain to Ms. Keep's licensure as a clinical social worker.

The State commenced these cases with the filing of Specifications of Charges. These charges encompassed a wide range of statutory

violations under two sets of extensive regulatory provisions designed to protect the public. See 26 V.S.A. §§ 4081, et seq. (on non-licensed, non-certified psychotherapists) and 26 V.S.A. §§ 3201, et seq. (on licensed clinical social workers). The central basis for the charges was the allegation that Respondent had engaged in a romantic and/or sexual relationship with a client. The State asserted that this behavior violated not only the substantive statutes applicable to these occupations, but also ran afoul of several of the generic unprofessional conduct provisions contained in 3 V.S.A. §129a.

After certain preliminary procedural steps, including the resolution of evidentiary objections and issues relating to the late scheduling of a deposition¹, the case came before me for hearing on the merits on October 26, 2012 at the Office of Professional Regulation in Montpelier, Vermont. At the conclusion of the hearing, I requested the parties to submit proposed findings, conclusions and suggested orders. The parties did so on or about November 20, 2012.

I have now reviewed the hearing transcript, the admitted exhibits² and the parties' post-hearing submissions. The following findings of fact, conclusions of law and order will apply as a final administrative order in

¹ The latter issue was resolved in the Vermont Superior Court.

² Respondent's counsel submitted a number of documents with his post-trial proposals. None of these were admitted into evidence at the hearing. I have not considered them. 3 V.S.A. §809(e), (g). They shall be stricken from the record, as any appellate body that may review these matters should not consider them. See OPR Administrative Rules of Practice ["OPR Rules"] 3.16 (A). I will also note that the submissions by Respondent's counsel were not compliant with OPR Rules 3.21 (final sentence).

Docket No. 2011-486. They will also serve as my proposal for decision³ in Docket No. 2012-25.

FINDINGS OF FACT.

1. Respondent, Stephanie Keep is rostered as a non-licensed, non-certified psychotherapist under number 097.001361 from September 1, 2008 through November 30, 2012. Respondent also became licensed as a Clinical Social Worker on March 14, 2011 and that license expires on January 31, 2014. State's EX. 5, ¶ 7. Respondent began the process of applying and qualifying for her clinical social worker license in the fall of 2007. Transcript of Hearing, October 26, 2012, In re Stephanie Keep, Dkt. Nos. 2011-486 and 2012-25, at 72 ["10/26 TR at __"]
2. Jane Doe ["JD"] is a woman who was a patient in the partial hospitalization program at the Brattleboro Retreat ("the Retreat"), a mental health treatment facility beginning in July 2009. State's EX. 5, ¶3.
3. JD participated in group therapy sessions at the Retreat with Respondent, who was employed there as a therapist on a per diem basis through July 2011. *Id.* 10/26 TR at 56-57.
4. Respondent also carried on a private practice during this period of time. 10/26 TR at 56-57.

³ See OPR Rules 3.16(D).

5. In November 2009 Respondent began providing individual psychotherapy to JD in Respondent's private practice. Previous to that time (from approximately October 2009) JD had participated in group therapy in her private practice. Their therapeutic relationship terminated in mid-May 2010. State's EX. 5 at ¶'s 4 & 5.
6. Respondent engaged in a romantic and sexual relationship with JD between approximately June 2010 and December 2010 or January 2011. State's EX. 5 at 6; 10/26 TR at 11-12, 23-24, 25. See also State's EX. 3.
7. In or about mid-May 2010, Respondent attempted to persuade JD to observe the proper boundaries of the therapist-client relationship. JD expressed unwillingness or inability to do so. 10/26 TR at 16-17. JD had told Respondent on a number of occasions that she loved her and that she knew the Respondent loved her back. 10/26 TR at 35.
8. During the period she provided therapy to JD, Respondent knew of JD's diagnoses under the DSM-V—these included post-traumatic stress disorder, anxiety disorder and a blooming of depression. 10/26 TR at 29-30.
9. Following the termination of her relations with JD, Respondent was made aware that JD was demonstrably upset and heartbroken because of the breakup, and that she

threatened harm to herself. 10/26 TR at 33; State's EX. 3 (Respondent's self-report that: "historically, this has been the type of statement before she [JD] has done something harmful to herself or destructive".)

10. Respondent submitted a self-report to the Office of Professional Regulation ["OPR"] on August 3, 2011, subsequent to the events outlined above. The report was submitted after JD threatened to go to the media in Brattleboro concerning the relationship. 10/26 TR at 13.
11. According to a later submission to the OPR by Respondent's then-counsel, during the period of these events and subsequently Respondent was being treated by a therapist for PTSD, Depression and ADHD. State's EX. 4. These issues and the "boundary crossing" which she acknowledges arose from her difficulties with grief, in Respondent's view. 10/26 TR at 54-55.
12. Respondent stipulates that she engaged in unprofessional conduct for which I may impose discipline under the various statutes referenced above.⁴

⁴ I note that State's EX. 5 is a "Proffer" by Respondent that contains an admission of unprofessional conduct, but appears to limit the admission to a violation of the prohibition against engaging in any sexual conduct with a client. . . with whom the licensee has had a professional relationship... ." I do not believe the unprofessional conduct violations may be so delimited on the facts of these cases, as I will describe above. In addition, the exhibit appears to pertain only to Respondent's licensure as a clinical social worker. At the outset of the hearing, Respondent's counsel agreed that it

CONCLUSIONS OF LAW. Given paragraphs 6 and 12 of my findings, there can be no question that Respondent committed unprofessional conduct under 26 V.S.A. § 3210(a)(3) and 26 V.S.A. § 4093(a)(5) (engaging in any sexual conduct with a client, or with the immediate family member of a client, with whom the licensee has had a professional relationship within the previous two years). At the time Respondent had the sexual relationship with JD she was a rostered psychotherapist; she was also an *applicant* for licensure as a clinical social worker (see 3 V.S.A. §129a(a)); and in any event, her licensure as a clinical social worker ensued within two years of her relationship with JD.

The State also argues, with some justification that this core transgression amounts to the violation of a host of other provisions in these statutory schemes. It is no doubt technically correct. However, for the purposes of this case, and to support the sanctions that should be imposed, it is unnecessary to specify all of the violations. I believe that it is sufficient here to conclude that the admitted sexual relationship with this client clearly amounted as well to violations of 26 V.S.A. § 3210(a)(7)(failing to inform a client when a real or potential conflict of interest arises and to take reasonable steps to resolve the issue in a manner that makes the client's interest primary and protects the client's interest to the greatest extent possible); 26 V.S.A. § 3210(a)(10) (failing to take steps to protect a client and to set clear, appropriate and culturally

could be considered as well in connection with her registration as a non-licensed, non-certified psychotherapist. 10/26 TR at 5-7.

sensitive boundaries, in instance where dual or multiple relationships are unavoidable); 3 V.S.A. § 129a(a)(15) (Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession); 29 V.S.A. § 4093(a)(7) (entering into an additional relationship with a client, supervisee, research participant or student that might impair the psychotherapist's objectivity or otherwise interfere with his or her professional obligations); and 3 V.S.A. § 129a(b)(2) (Failure to practice competently by reason of any cause on a single occasion or on multiple occasions. . . [meaning] (2) failure to conform to the essential standards of acceptable and prevailing practice)".

SANCTIONS.

It is abundantly clear in this case that Respondent must be sanctioned. The objective of these sanctions, in my estimation, is to protect the public from conduct by a licensed professional that may be harmful, and to assist the professional in rehabilitating herself so as to be capable in the future of engaging in her desired occupation.

Both the State and the Respondent agree on that period of suspension is appropriate. The Respondent, however, would have me impose the suspension but have me "stay" all of it but a period of forty-five days. I decline to do so. The grounds upon which this is urged are that Respondent has since these events engaged in productive efforts to understand that what she did was improper and to advance her training

in her professions. Much of what is offered is matter that was not admitted into evidence in the hearing, and I will not consider it. See footnote 2. In view of the clarity of the violations, and my assessment of Respondent's testimony, which at times verged on non-recognition of the severity of what she had done, I believe the following should be imposed:

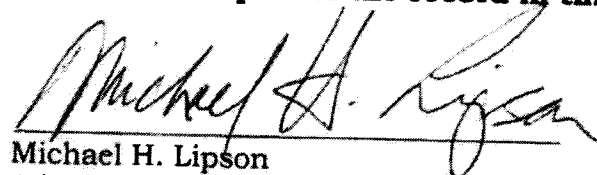
1. Respondent's clinical social worker license shall be suspended for a period of twelve (12) months, and her name shall be temporarily stricken from the roster of non-licensed, non-certified psychotherapists for the same duration;
2. Respondent may apply for reinstatement to occur following the period of suspension. In doing so, she shall demonstrate to the reasonable satisfaction of the Director of OPR or his designee and/or, if she wishes to resume practice on the roster, to the Board, that permitting her to resume in practice shall not present a danger to the public and that her mental health allows her to resume practicing. Respondent shall submit to the Director or the Board two evaluations that so conclude conducted by (1) an independent licensed mental health counselor and (2) a psychiatrist, both pre-approved by the Director or his designee and/or the Board. Evaluation by Respondent's current therapist shall not be accepted.

3. Respondent shall continue individual therapy as directed by her therapist, taking into account the events that led to this order and her history and current circumstances.
4. Respondent shall successfully complete a three credit graduate level course in ethics and boundaries prior to reinstatement.
5. With her reinstatement application, the Respondent shall present to the Director or his designee and/or the Board for approval three names of potential supervisors. Once reinstated the Respondent's entitlement to practice shall be conditioned for three (3) years upon her consent to a course of supervision suggested by the supervisor and approved by the Director or his designee and/or the Board.

The foregoing is ORDERED in Docket No. 2011-486. In addition, it is ordered in Docket No. 2011-486 that the submissions of Respondent set forth in ¶'s 13-16 of her November 19, 2012 "Proposed Findings of Fact, Conclusions of Law, and Disposition (with attachments)" and materials presented therewith shall be struck from the file and are not part of the record in this docket.

The foregoing FINDINGS, CONCLUSIONS and SANCTIONS constitute the PROPOSAL FOR DECISION of the undersigned Hearing Officer in Docket No. 2012-25 and are subject to further proceedings as provided for in OPR Rules 3.16(D). See also 3 V.S.A. §129(f). In addition, it is ordered in Docket No. 2012-25 that the submissions of Respondent set forth in ¶'s 13-16 of her November 19, 2012 "Proposed Findings of Fact, Conclusions of Law, and Disposition (with attachments)" and materials presented therewith shall be struck from the file and are not part of the record in this docket.

Dated: November 30, 2012



Michael H. Lipson
Administrative Law Officer & Hearing officer

Date Entered: 12/10/12

APPEAL RIGHTS

The foregoing ruling in Docket No. 2011-486 is a final administrative decision. A party may appeal this decision to the Superior Court in Washington County by filing a written notice with the Director of the Office of Professional Regulation, Office of the Secretary of State, 1 National Life Drive, North Floor 2, Montpelier, VT 05620-3402, within 30 days of the date this decision is entered